

26STCV00282 26STCV00282

County: los-angeles
Division: Civil Law and Motion
Department: 733
Hearing date: 2026-08-19
Motion: PLAINTIFF'S MOTION FOR LEAVE TO AMEND COMPLAINT
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Case Number: 26STCV00282 Hearing Date: August 19, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

VILMA
YANETH BOLANOS SOLITO,

Plaintiff,

vs.

CHEDRAUI USA, INC., and DOES 1 to 10,

Defendants.

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CASE

NO.: 26STCV00282

[TENTATIVE] ORDER RE: PLAINTIFF'S
MOTION FOR LEAVE TO AMEND COMPLAINT

Dept. 733

8:30 a.m.

August 19, 2026

I.

INTRODUCTION

This case arises
from a slip-and-fall incident,

On January 6,
2026, Plaintiff Vilma Yaneth Bolanos Solito ("Plaintiff") filed a complaint

against Chedraui USA, Inc.
("Defendant").

On
January 27, 2026, Plaintiff filed a first amended complaint ("FAC") against
Defendant, alleging causes of action for Negligence and Premises Liability.

On July 1, 2026,
Plaintiff filed the instant motion for leave to amend the FAC.

No opposition was filed.

II.

LEGAL STANDARD

“The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars...” (Code Civ. Proc., § 473(a)(1).)

“Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order”. (Id., § 576.)

Permissible amendments include the addition of new causes of action as well as the addition of new parties. (Id., §§ 426.50, 473(a).)

The court has broad discretion to permit amendments to pleadings, and “the court’s discretion will usually be exercised liberally to permit amendment of the pleadings.” (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428.) “The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified.” (Ibid.) “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend” (Morgan v. Superior Court (1959) 172 Cal.App.2d 527, 530.) Prejudice includes “delay in trial, loss of critical evidence, or added costs of preparation.” (Solit v. Tokai Bank, Ltd. New York Branch (1999) 68 Cal.App.4th 1435, 1448.)

California Rules

of Court, rule 3.1321(a) requires that a motion to amend must: “[i]nclude a copy of the proposed . . . amended pleading . . . [and] state what allegations in the previous pleading are proposed to be [deleted and/or added], if any, and where, by page, paragraph, and line number, the [deleted and/or additional] allegations are located.” Pursuant to California Rules of Court, rule 3.1324(b), a separate declaration must accompany a motion for leave to amend and must specify: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier.

III.

DISCUSSION

Plaintiff seeks to amend the FAC to incorporate two additional theories of negligence: (i)

Defendant failed to guard against the foreseeable and recurring risk of meat-fluid leaks created by its sale of packaged meat that customers carry throughout the store; and (ii) Defendant's floor-sweep employee failed to perform a reasonably diligent inspection and cleaning of the aisle, despite being employed for that very purpose, and in particular failed to identify, address, or warn of the dangerous condition that he passed by twice.

The Court finds that Plaintiff has complied California Rules of Court, rule 3.1324(a).² The motion includes a copy of the proposed Second Amended Complaint (SAC).³ (Farzan Decl., Ex. A.) Plaintiff sets forth that the proposed SAC would reflect additional factual allegations and supporting paragraphs to the existing causes of action for Negligence and Premises Liability, incorporating the two additional factual theories described above. (Id. ¶ 6.)

Plaintiff's motion also substantially complies with California Rules of Court, rule 3.1324(b). Plaintiff's counsel's declaration specifies the effect of the amendments and explains why the amendments are necessary and proper. (Id. ¶ 7.) Plaintiff's counsel asserts that after the FAC was filed, he obtained footage through discovery that supports the two additional factual theories Plaintiff seeks to incorporate into the proposed SAC. (Id. ¶ 4.) Further, the amendment will allow Plaintiff's allegations to conform to the evidence Plaintiff's counsel acquired through discovery. (Id. ¶ 7.)

The Court reiterates that the policy favoring amendment is so strong that denial of leave to amend can rarely be justified: "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion." (Morgan v. Superior Court (1959) 172 Cal.App.2d 527, 530.)

The Court lastly
notes that no opposition was filed.

IV.

CONCLUSION

Plaintiff's motion for leave to
amend the complaint is GRANTED. Plaintiff must file the

proposed Second Amended Complaint within five (5) days of
this order.

Dated this 19th
day of August 2026

Hon. Gary
D. Roberts

Judge
of the Superior Court